



Australian Government
National Mental Health Commission

Dr Richard William McLean
2 McCubbin St,
Footscray VIC 3011

Dear Dr McLean,

Freedom of Information Request no. FOI-22-01 – Internal Review

I refer to your request by email dated 6 May 2022 for internal review of the Commission's decision in relation to your request to access to documents under the *Freedom of Information Act 1982* (FOI Act).

I have taken this email as a request for an internal review of the Commission's decision (FOI 22-01) under section 54 of the FOI Act.

We received your request for internal review on 6 May 2022 and the 30-day statutory period for processing your request commenced from that date. As the 30 days expires on a Sunday, we are required to make a decision by 6 May 2022.

I have decided to reconsider in full both the FOI request and the original decision on that request.

I am advising you in writing of my decision.

Decision

I am authorised under subsection 23(1) of the FOI Act to make decisions on requests for access to documents.

Your request for internal review restated the scope of the original request (as contained within the email chain of your request for review). I note that prior to the original decision makers' decision the Commission had tried to clarify what documents you were seeking. You responded that:

It is very clear in my initial email why it is I would like my FOI, and additionally, what issues the FOI pertains to. I'll reproduce here for clarity.

Your original request was then copied below.

Your email also had a document attached to it that is addressed to APRA, ASIC, Lifeccc. I am very sorry to hear of your difficulties in seeking compensation and the detrimental impacts that the events you describe have had on your mental health and wellbeing.

I note that the Commission monitors and reports on investment in mental health and suicide prevention initiatives, provides evidence-based policy advice to Government and disseminates

information on ways to continuously improve Australia's mental health and suicide prevention systems, and acts as a catalyst for change to achieve those improvements. The Commission does not, however, have the authority to advocate on behalf of individuals nor to investigate complaints about service providers or other government agencies. As such, the Commission doesn't tend to hold documents relating to these activities.

Given this background and your internal review request, I consider the scope of the request to be the same as the original decision maker. That is, I have taken your request to be for any documents:

- (a) mention your name (Dr Richard William McLean) or Richie Mclean
- (b) mention your book *Recovered, Not Cured: A Journey Through Schizophrenia*
- (c) relate to the government or any agency and
 - i. Weribbee Mercy hospital; or
 - ii. Steve Lasonidis
- (d) relate to your business at www.richmclean.com.au

The searches for documents were undertaken anew for this internal review. The searches excluded documents that related solely to your FOI request, which were received or created after the date of the original request.

Three (3) documents were identified as within the scope of your request. These are the same documents that were identified and released in part by the original decision maker. These documents were located using relevant key word searches of relevant business systems and records, including the Commission's electronic records management system and relevant email inboxes.

The documents which I have decided are related to your request are set out in the Schedule of Documents at Attachment B.

I have decided to give access to all documents subject to the deletion of exempt material as indicated in the attached schedule. My reasons for the decision are set out in Attachment A.

I note that the decision of the original decision maker to provide you access to extracts of the documents that contained the information in those documents that pertained to you, was grounded in your agreement to that approach (provided on the phone call with the decision maker on 5 May 2022). This decision was also based on the impracticality of redacting approximately 1000 pages of exempt material across those 3 documents.

While your request for internal review did not raise any particular objection to this part of the decision, I have decided to prepare edited copies (rather than an edited extract), with the deletion of exempt material. The Commission will provide access to the documents to you via email.

Your review rights

If you are dissatisfied with my decision, you may apply for Information Commissioner review of the decision.

Information Commissioner Review

Under section 54L of the FOI Act, you may apply to the Australian Information Commissioner to review my decision. An application for review must be made in writing within 60 days of this notice (if you do not request an internal review). The Information Commissioner can be contacted by:

Email: enquiries@oaic.gov.au
Phone: 1300 363 992

You may also make a complaint to the Information Commissioner about action taken by the Commission in relation to your application. More information is available on the Office of the Australian Information Commissioner (OAIC) website at <http://www.oaic.gov.au/freedom-of-information/requesting-a-review>

Relevant provisions

The FOI Act, including the provisions referred to in this letter, can be accessed from the Federal Register of Legislation website: <https://www.legislation.gov.au/Details/C2017C00102>

Publication

You should be aware that where I have decided to release documents to you, the Commission may also publish the released material on its Disclosure Log. The Commission will not however, publish information (such as personal or business information) where it would be unreasonable to do so.

For your reference the Commission's Disclosure Log can be found at:
<https://www.mentalhealthcommission.gov.au/About/policies/Freedom-of-Information>

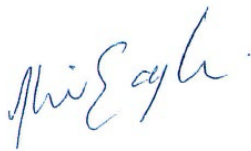
Questions about this notice

If you have any questions or wish to discuss this notice with us, please contact me via:

Phone: 02 8229 7520

Email: Kim.Eagle@mentalhealthcommission.gov.au

Yours sincerely



Kim Eagle
COO/CFO
National Mental Health Commission

6 June 2022

DECISION RECORD

Scope of Request

For any documents that:

- (a) mention your name (Dr Richard William McLean) or Richie McLean
- (b) mention your book *Recovered, Not Cured: A Journey Through Schizophrenia*
- (c) relate to the government or any agency and
 - i. Weribbee Mercy hospital; or
 - ii. Steve Lasonidis
- (d) relate to your business at www.richmclean.com.au

Authority to make decision

I am an officer authorised under section 23 of the *Freedom of Information Act 1982* (FOI Act) to make decisions in respect of requests to access documents or to amend or annotate Commission records. This includes authority to make decisions in respect of internal reviews of decisions made by the Commission under the FOI Act to refuse access to documents either wholly or in part. I have reviewed the decision of the original decision maker and make this fresh decision in accordance with section 54C of the FOI Act.

Information Considered

In making a decision on your internal review request I took into account:

- the terms of your request for internal review
- the terms of your original request
- the FOI Act
- the Australian Information Commissioner's FOI Guidelines
- Commission documents, identified in the Schedule of Documents (Schedule), and
- consultations with relevant business areas.

Reasons for decision

I have reconsidered in full both your FOI request and the original agency decision on that request. I have undertaken new searches for documents. The same documents were identified as in the original decision. I do not consider any change in circumstances or new information or evidence has come to light since the original decision.

I have considered the documents within the scope of your request and applied exemptions in part to documents as detailed in the schedule. You should read the schedule in conjunction with the exemptions below.

Conditionally exempt documents

The documents I have considered fall under a 'conditional exemption' in the FOI Act.

The FOI Act provides that 'conditionally exempt' documents must be released unless the decision maker reaches the view that the release of the information would be contrary to the public interest.

If, access to a document is refused because it contains exempt matter, and the exempt matter can be deleted, an edited copy deleting the exempt matter must be prepared (if reasonably practicable); and access to the edited copy must be given (s.22).

Conditional Exemptions as applied to your request

Public interest conditional exemption – personal privacy – s.47F

Section 47F of the FOI Act provides that a document is conditionally exempt if its disclosure would involve the unreasonable disclosure of personal information about any person (including a deceased person).

Personal Information

Personal information has the same meaning as in the *Privacy Act 1988* (Cth) (the Privacy Act). Specifically, section 6 of the Privacy Act provides that personal information means information or an opinion about an identified individual, or an individual who is reasonably identifiable whether the information or opinion is true or not; and whether the information or opinion is recorded in a material form or not.

Paragraph 6.131 of the FOI Guidelines states that for particular information to be personal information, an individual must be identified or reasonably identifiable.

In addition, sensitive personal information, as defined by the Privacy Act, includes 'health information', meaning information or an opinion about:

- (i) *the health or a disability (at any time) of an individual; or*
- (ii) *an individual's expressed wishes about the future provision of health services to him or her; or*
- (iii) *a health service provided, or to be provided, to an individual.*

Paragraph 6.130 of the FOI Guidelines states that personal information can include a person's name, address, telephone number, date of birth, medical records, bank account details, taxation information and signature.

I am satisfied that each of the documents marked 's47F' in the schedule includes personal information and sensitive personal health information.

Unreasonable Disclosure of Personal Information

Subsection 47F(2) of the FOI Act provides that in determining whether the disclosure would involve the unreasonable disclosure of personal information, I must have regard to the following matters:

- (a) the extent to which the information is well known
- (b) whether the person to whom the information relates is known to be (or to have been) associated with the matters dealt with in the document
- (c) the availability of the information from publicly accessible sources
- (d) any other matters that the agency or Minister considers relevant.

Paragraph 6.138 of the FOI Guidelines states that:

The personal privacy exemption is designed to prevent the unreasonable invasion of third parties' privacy. The test of 'unreasonableness' implies a need to balance the public interest in disclosure of government-held information and the private interest in the privacy of individuals. The test does not, however, amount to the public interest test of s 11A(5), which

follows later in the decision making process. It is possible that the decision maker may need to consider one or more factors twice, once to determine if a projected effect is unreasonable and again when assessing the public interest balance.

I note that the AAT, in *Re Chandra and Minister for Immigration and Ethnic Affairs [1984] AATA 437* at paragraph 259, stated that:

... whether a disclosure is 'unreasonable' requires ... a consideration of all the circumstances, including the nature of the information that would be disclosed, the circumstances in which the information was obtained, the likelihood of the information being information that the person concerned would not wish to have disclosed without consent, and whether the information has any current relevance ... it is also necessary in my view to take into consideration the public interest recognised by the Act in the disclosure of information ... and to weigh that interest in the balance against the public interest in protecting the personal privacy of a third party ...

In making my decision I have considered the following factors from the FOI Guidelines:

- the author of the document is identifiable (Paragraph 6.142)
- the documents contain third party personal information (6.142)
- release of the documents would cause stress on the third party (6.142)
- no public purpose would be achieved through release (6.142)
- the nature, age and current relevance of the information (6.143).
- any detriment that disclosure may cause to the person to whom the information relates (6.143)
- any opposition to disclosure expressed or likely to be held by that person (6.143)
- the circumstances of an agency's collection and use of the information (6.143)
- the fact that the FOI Act does not control or restrict any subsequent use or dissemination of information released under the FOI Act (6.143)
- whether disclosure of the information might advance the public interest in government transparency and integrity (6.143).

I understand that each of the documents listed in the schedule (versions of *Glimpses*) may at one point have been available for download on a website and may have been distributed to mental health networks and to universities. Like the original decision maker I was not, however, able to find any version of the document on the internet and are therefore not able to verify the extent to which the information is well known or whether or not the personal information it contains is publicly available.

Glimpses is a manuscript of personal experiences with mental illness created for Carers, Consumers, Educators and Clinicians. It includes deeply personal stories from people about their experiences of mental illness as consumers or carers, including suicidal ideation, and the impacts it has had on their lives. Many of these stories contain personal and sensitive information, including health information.

I am satisfied that the disclosure of personal and sensitive information contained within the documents would, in the circumstances, constitute an unreasonable disclosure of personal information for the following reasons:

- the individuals whose personal information is contained in the document are identifiable
- release of this information may cause anxiety to the individuals concerned
- the information is likely in many cases to be current and is unlikely to have lost its sensitivity through the passage of time
- the individuals may not expect the information to be placed in the public domain, and detriment may be caused to the individuals to whom the information relates
- the FOI Act does not control or restrict any subsequent use or dissemination of information released under the FOI Act.

For the reasons outlined above, I have decided that the redacted parts of the documents marked 's47F' in the schedule are conditionally exempt from disclosure under section 47F of the FOI Act.

The Public Interest Test

Where a document is found to be conditionally exempt, the Commission must give access to that document unless access to the document at this time would, on balance, be contrary to the public interest.

To determine whether disclosure of the document/s would be contrary to the public interest, I have considered the following factors in Paragraph 6.5 in the FOI Guidelines:

- something that is of serious concern or benefit to the public, not merely of individual interest
- not something of interest to the public, but in the interest of the public
- not a static concept, where it lies in a particular matter will often depend on a balancing of interests
- necessarily broad and non-specific and
- relates to matters of common concern or relevance to all members of the public, or a substantial section of the public.

In addition, as required by paragraph 11B(3) of the FOI Act, I have considered whether disclosure of the information would:

- (a) promote the objects of the Act
- (b) inform debate on a matter of public importance
- (c) promote effective oversight of public expenditure
- (d) allow a person to access his or her personal information (s.11B(3))

Having regard to the above, I consider that disclosure of the documents at this time:

- would provide access to documents held by an agency of the Commonwealth which would promote the objects of the FOI Act by providing the Australian community with access to information held by the Australian Government.
- would allow you access to your own personal information. Noting, however, that the conditional exemption would not apply to this information.

I consider that the following public interest factors weigh against disclosure of the conditionally exempt information at this time, on the basis that disclosure:

- would not contribute to a debate on a matter of public importance
- would not promote effective oversight of public expenditure
- could reasonably be expected to prejudice the protection of the relevant individuals' right to privacy
- the information that you seek in the documents (information about yourself) has been released to you and disclosure of others' personal information would not provide you with any further insight into the workings of government
- no public purpose would be achieved through the release of the personal information and its disclosure, on balance, would harm the individual's right to personal privacy.

In making my decision, I have not taken into account any of the irrelevant factors set out in subsection 11B(4) of the FOI Act, which are:

- (a) access to the document could result in embarrassment to the Commonwealth Government, or cause a loss of confidence in the Commonwealth Government
- (b) access to the document could result in any person misinterpreting or misunderstanding the document
- (c) the author of the document was (or is) of high seniority in the agency to which the request for access to the document was made
- (d) access to the document could result in confusion or unnecessary debate.

Conclusion

For the reasons set out above, after weighing all public interest factors for and against disclosure, I have decided that, on balance, disclosure of the conditionally exemption information would be contrary to the public interest. I am satisfied that the benefit to the public resulting from disclosure is outweighed by the benefit to the public of withholding the information.

SCHEDULE OF DOCUMENTS - FOI 2022-01

Doc. No.	No. of Pages	Date	Author	Addressee	Description of Document	Decision ¹	Portion Exempt
1	354	19.9.12	Nicci Wall	National Mental Health Commission (via the NMHC enquiries inbox: Enquiries@mentalhealthcommission.gov.au)	<i>Glimpses</i> (19.9.12) manuscript of personal experiences with mental illness for free distribution to Carers, Consumers, Educators and Clinicians	RE - s47F	Redacted sections containing the personal information of individuals that are not the applicant
2	390	19.12.12	Nicci Wall	National Mental Health Commission (via the NMHC enquiries inbox: Enquiries@mentalhealthcommission.gov.au)	<i>Glimpses</i> (19.12.12) manuscript of personal experiences with mental illness for free distribution to Carers, Consumers, Educators and Clinicians	RE - s47F	Redacted sections containing the personal information of individuals that are not the applicant
3	427	29.11.13	Nicci Wall	National Mental Health Commission (via the NMHC enquiries inbox: Enquiries@mentalhealthcommission.gov.au)	<i>Glimpses</i> (29.11.13) manuscript of personal experiences with mental illness for free distribution to Carers, Consumers, Educators and Clinicians	RE - s47F	Redacted sections containing the personal information of individuals that are not the applicant

¹ R= Release, RI= Release with deletion of Irrelevant information, RE = Release with Exemptions applied, E = Exempt in Full, I = Irrelevant